



CHAPTER x.

An Act to confirm certain Provisional Orders made by one of His Majesty's Principal Secretaries of State under the Marriages Validity (Provisional Orders) Acts 1905 and 1924.

A.D. 1932.

[12th May 1932.]

WHEREAS under the provisions of the Marriages Validity (Provisional Orders) Acts 1905 and 1924 one of His Majesty's Principal Secretaries of State has made Provisional Orders which need confirmation by Parliament :

5 Edw. 7.
c. 23.
14 & 15
Geo. 5. c. 20.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders of the Secretary of State which are set out in the schedule to this Act are hereby confirmed and shall have full validity and force.

Orders in
schedule
confirmed.

2. This Act may be cited as the Provisional Orders (Marriages) Confirmation Act 1932.

Short title.

A.D. 1932.

SCHEDULE.*Saints
Cosmus and
Damian
Challock
Order.***SAINTS COSMUS AND DAMIAN CHALLOCK
ORDER.**

WHEREAS power is given to a Secretary of State by the Marriages Validity (Provisional Orders) Acts 1905 and 1924 in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt and to include in such Order supplemental incidental and consequential provisions including provisions for relieving from liability ministers who have solemnized the marriages to which the Order relates :

And whereas pursuant to a Scheme prepared by the Ecclesiastical Commissioners under the Union of Benefices Measure 1923 which was affirmed by Order of His Majesty in Council dated the tenth day of August one thousand nine hundred and twenty-seven and duly published in the London Gazette on the twelfth day of August one thousand nine hundred and twenty-seven the benefice of Molash and the benefice of Challock both of which are situate in the county of Kent and the diocese of Canterbury were on the twenty-fourth day of February one thousand nine hundred and twenty-nine permanently united to form one benefice under the style of the united benefice of Challock and Molash :

And whereas the parishes of the said benefices were on the last mentioned date united into one parish for ecclesiastical purposes and the church of the parish of Molash was designated the parish church of the united parish :

And whereas on the sixth day of October one thousand nine hundred and thirty a marriage was solemnized at the church of Saints Cosmus and Damian the church of the former parish of Challock in the county of Kent and the diocese of Canterbury :

And whereas it is expedient in the circumstances aforesaid to remove all doubt touching the validity of the said marriage and to make certain supplemental incidental and consequential provisions :

Now therefore I the Right Honourable Sir Herbert Samuel one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said Marriages Validity (Provisional Orders) Acts 1905 and 1924 do hereby order that

[22 & 23 GEO. 5.] *Provisional Orders* [Ch. x.]
(*Marriages*) *Confirmation Act, 1932.*

on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect :—

- (1) The marriage solemnized on the sixth day of October one thousand nine hundred and thirty at the church of Saints Cosmus and Damian in the parish of Challock and Molash in the county of Kent and diocese of Canterbury shall be deemed to have been as valid as if it had been solemnized in a church in which such marriage might be solemnized lawfully :
- (2) The minister who has solemnized the marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized such marriage :
- (3) The register of the marriage so solemnized or copies of the register shall be received in all courts as evidence of this marriage in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence.

A.D. 1932.
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*Saints
Cosmus and
Damian
Challock
Order.*

SAINT JAMES POKESDOWN ORDER.

*Saint James
Pokesdown
Order.*

WHEREAS power is given to a Secretary of State by the Marriages Validity (Provisional Orders) Acts 1905 and 1924 in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt and to include in such Order supplemental incidental and consequential provisions including provisions for relieving from liability ministers who have solemnized the marriages to which the Order relates :

And whereas by an Instrument dated the thirty-first day of July one thousand nine hundred and thirty under the common seal of the Ecclesiastical Commissioners for England the new church of All Saints situate within the new parish of Pokesdown in the county of Southampton and the diocese of Winchester was substituted for the old church (known as the church of Saint James) situate within and until that date the parish church of the said new parish :

And whereas by an Order in Council dated the twenty-third day of July one thousand nine hundred and thirty-one and duly published in the London Gazette on the twenty-eighth day of July one thousand nine hundred and thirty-one a District Chapelry was assigned to the said church of Saint James Pokesdown and authority was given for the publication of banns of matrimony and the solemnization of marriages thereat :

[Ch. x.]

Provisional Orders [22 & 23 GEO. 5.]
(Marriages) Confirmation Act, 1932.

A.D. 1932.

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Saint James
Pokesdown
Order.

And whereas between the thirty-first day of July one thousand nine hundred and thirty and the twenty-eighth day of July one thousand nine hundred and thirty-one certain marriages were solemnized in the said church of Saint James Pokesdown :

And whereas it is expedient in the circumstances aforesaid to remove all doubt touching the validity of the said marriages and to make certain supplemental incidental and consequential provisions :

Now therefore I the Right Honourable Herbert Samuel one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said Marriages Validity (Provisional Orders) Acts 1905 and 1924 do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect :—

- (1) All banns of matrimony and marriages published and solemnized between the thirty-first day of July one thousand nine hundred and thirty and the twenty-eighth day of July one thousand nine hundred and thirty-one in the church of Saint James in the new parish of Pokesdown in the county of Southampton and diocese of Winchester shall be deemed to have been as valid as if they had been published and solemnized in a church in which such banns might be published and marriages solemnized lawfully :
- (2) The minister who has solemnized the marriages referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized such marriages :
- (3) The register of the marriages so solemnized or copies of the register shall be received in all courts as evidence of these marriages in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence.

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